



CHAPTER iii

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1936 relating to the Society in Scotland for Propagating Christian Knowledge.
[18th December 1958.]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has been made by the Secretary of State under the provisions of the Private Legislation Procedure (Scotland) Act 1936 and it is requisite that the said Order should be confirmed by Parliament: 26 Geo. 5 &
1 Edw. 8 c. 52.

Be it therefore enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the Society in Scotland for Propagating Christian Knowledge Order Confirmation Act 1958. Short title.

SCHEDULE

SOCIETY IN SCOTLAND FOR PROPAGATING CHRISTIAN KNOWLEDGE

Provisional Order to extend the powers of the directors of the Society in Scotland for Propagating Christian Knowledge with respect to the investment of the funds belonging to or held by them and for other purposes.

WHEREAS the Society in Scotland for Propagating Christian Knowledge (hereinafter referred to as "the Society") was incorporated by letters patent on the twenty-fifth day of May seventeen hundred and nine and the sixth day of June seventeen hundred and thirty-eight for the purposes therein mentioned:

11 & 12 Geo. 5
c. 58. And whereas the funds of the Society are held by the directors of the Society in such investments as trustees have power to hold the same under the Trusts (Scotland) Act 1921 but such powers have become unduly restricted and it is expedient that the powers of the Society with respect to the investment of funds belonging to or held by them should be enlarged and extended as provided in this Order:

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1936:

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary of State orders as follows:—

Short title. 1. This Order may be cited as the Society in Scotland for Propagating Christian Knowledge Order 1958.

Commencement
of Order. 2. This Order shall commence and have effect on the date of the passing of the Act confirming the same which date is hereinafter referred to as the commencement of this Order.

Interpretation. 3. In this Order—
 "the directors" means the directors of the Society elected in pursuance of the letters patent;
 "the letters patent" means the Letters Patent whereby the Society was incorporated under the royal seals of Her Majesty Queen Anne and His Majesty King George the Second dated the twenty-fifth day of May seventeen hundred and nine and the sixth day of June seventeen hundred and thirty-eight respectively;
 "the Society" means the Society in Scotland for Propagating Christian Knowledge.

4. The directors of the Society may invest funds in or upon all or Powers of
any of the following investments securities and obligations (namely):— investment.

- (1) in investments in which trustees are authorised to invest trust funds according to the law of Scotland or the law of England for the time being;
- (2) in the purchase or on the security of heritable or real or leasehold property or real estate in any part of the world;
- (3) in or upon the public stocks or funds or government securities of—

(a) the United Kingdom of Great Britain and Northern Ireland; or

(b) any of Her Majesty's dominions; or

(c) India; or

(d) the British protectorates and protected states; or

(e) any trust territory administered by the government of any part of Her Majesty's dominions; or

(f) the United States of America;

- (4) in or upon the deposit receipts bonds debentures debenture stock mortgages or other securities of any corporation company or body whether municipal railway public utility commercial industrial investment trust unit trust mortgage insurance banking or otherwise registered or incorporated in—

(a) the United Kingdom of Great Britain and Northern Ireland; or

(b) any of Her Majesty's dominions; or

(c) India; or

(d) the British protectorates and protected states; or

(e) any trust territory administered by the government of any part of Her Majesty's dominions; or

(f) the United States of America; or

in or upon the guaranteed or lien or preference or preferred or ordinary or deferred or common stocks or shares of any such corporation company or body or in or upon any securities issued or guaranteed by any such corporation company or body and in the case of banks and insurance companies whether or not there is liability for calls or other payments on any of the stocks shares or other securities of such banks and insurance companies:

Provided that—

- (a) if any properties or investments which are not of the nature authorised by the provisions of this section have been or may hereafter be given or bequeathed or entrusted to the directors they may notwithstanding anything in this section retain and hold such properties or investments;

- (b) investment in the ordinary stocks or shares of any corporation company or body shall not be made under the powers of paragraph (4) of this section—

(i) unless the said stocks or shares at the time of making the investment are quoted on the London Aberdeen Dundee Edinburgh or Glasgow Stock Exchanges; and

(ii) unless the corporation company or body has a total issued and paid-up ordinary capital of one million pounds and has paid a dividend on its ordinary shares of at least five per centum during each of the four years preceding the date of investment; and

(iii) if the value of all the investments in debentures and preference and ordinary stocks and shares equals or exceeds one-third of the movable capital of the Society.

Costs of Order. 5. The costs charges and expenses of and incidental to the preparation obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the Society out of the funds of the Society.

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